

WHISTLEBLOWER POLICY

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General

Under the Whistleblowers Protection Act (*Wet bescherming klokkenluiders*, Wbk), all organisations with 50 or more workers must have a whistleblower policy that allows employees and external natural persons to report suspected misconduct.

This policy explains what you can do if you believe misconduct is taking place.

It describes the procedure, and also your rights and obligations.

Below is a short diagram outlining the whistleblower procedure, followed by an explanation of the key elements.

Whistleblowing procedure — overview

Suspicion of misconduct



Possible consultation with an adviser, external confidential counsellor, or the Whistleblowers Authority



(Anonymous) internal report to the external confidential counsellor, General Manager, or Head of Department



Report forwarded to the Board of Directors



Investigation



Investigation report



Follow-up by the Board of Directors

The external confidential counsellor is Margriet Maris,
hetvolstevertrouwen.nl
085 – 8880886

You may also report directly to a competent authority, such as (through) the Whistleblowers Authority.

www.huisvoorklokkenluiders.nl
088-1331000

If an investigation is not initiated, the reporter will be informed and may submit an objection.

When can you report misconduct?

- You may make a notification under this Whistleblower Policy if you suspect misconduct where the public interest is at stake or a breach of Union law by ECT or one of its employees. The public interest is considered to be at stake when an act or omission does not only affect personal interests, and there is evidence of a pattern, structural nature, or when a single act or omission is severe or extensive, and it may impose a danger to public health, the safety of individuals, the environment, or the proper functioning of public service. A personal workplace conflict is not a public-interest misconduct. A culture of fear or fraud can be. A privacy breach such as a data leak may be a breach of Union law.
- Your suspicion or information is based on things you have seen, heard, or documents you hold. It may not be based solely on hearsay.
- If you have or have had dealings with ECT in a business context. For example, because you work or worked for ECT, applied for a job at ECT, provide services, or work or worked for a customer, supplier or shareholder of ECT. In this policy we use the term “employer.” However, even if you are not or have not been employed by ECT, you may still make a notification. If you suspect misconduct but did not become aware of it through a business context, you cannot file a notification under this policy.

Need advice or have doubts?

If you are unsure whether misconduct exists, or you do not know whether or where to report, you may consult the external confidential counsellor, Margriet Maris, (hetvolstevertrouwen.nl), 085 – 8880886. You may also (anonymously if desired) seek information and advice from the Whistleblowers Authority (www.huisvoorklokkenuiders.nl).

Who can you report to?

If you meet the requirements in this policy, you may report suspected misconduct internally within ECT – anonymously if needed. This policy specifies the officials to whom you may report. You may also choose to make an external report to an authority designated by the government, such as the Whistleblowers Authority. A list of such authorities and the procedure for making an external report is included in this policy.

You may report internally first and externally later. Internal reporting allows ECT to address the issue quickly and take immediate measures if needed.

What happens after an internal report?

You will receive an acknowledgement of receipt within seven days. ECT will decide whether the report can or must be investigated. If a report is based solely on hearsay, or if the issue is not a public-interest misconduct or breach of Union law, no investigation will be started.

If ECT initiates an investigation, it will be conducted by independent and impartial investigators. Your identity remains protected unless you give consent for disclosure. The identity of the persons involved or mentioned as witnesses is also kept confidential. The information you provide will be handled with due care and confidentiality.

After the investigation, ECT will inform you of its position and the steps taken or planned. ECT must do this within three months after the acknowledgement of receipt. If ECT fails to do so in time, you may file an external report. If you disagree with ECT's position or the follow-up, you may raise this. ECT may then decide to conduct a new or supplementary investigation. If ECT maintains its position and you disagree, you may decide to file an external report (e.g. with the Whistleblowers Authority). You may seek advice beforehand if you are unsure.

Protection for reporters, advisers and other involved persons

If you report under this procedure, ECT will protect you against detriment. Your advisers or a family member working at ECT are also protected. Detriment means any adverse measure taken against you because of the report, such as dismissal, withholding salary, non-renewal of a supplier contract, or refusal to hire.

If you believe you are being disadvantaged because of the report, you can ask ECT or the Whistleblowers Authority to investigate. If the Authority concludes that legal assistance is needed due to the report or suspected detriment, you may receive subsidised legal aid or mediation via the Legal Aid Board.

There is no income or assets test, and no personal contribution.

Protection against detriment may also apply when you disclose misconduct publicly, e.g. by contacting the press, but only if certain conditions are met:

1. You first made an internal and/or external report; and
2. You have reasonable grounds to believe the investigation lacks progress, based on information provided by ECT or the relevant body; or
3. You have reasonable grounds to believe that:
 - the misconduct poses an imminent real danger to the public interest, or
 - there is a risk of detriment, or
 - reporting through official channels will likely not effectively remedy the misconduct.

In these cases, prior internal or external reporting is not required, but you must still reasonably believe your information is accurate.

No misconduct, but an irregularity?

Although the Whistleblowers Protection Act only covers misconduct, ECT's policy also allows internal reporting of (suspected) irregularities. An irregularity is an imperfection or impropriety not yet serious enough to affect the public interest, but serious enough to fall outside normal working processes and beyond the responsibility of the immediate supervisor. Examples include suspected conflicts of interest or leakage of sensitive business information. ECT considers it important to give employees the opportunity to report such issues early, so they can be resolved before growing into misconduct. There is no possibility of external reporting for irregularities. This policy does not apply to purely personal complaints, and must be distinguished from the policies on undesirable behaviour and regulatory compliance complaints.

ECT ensures publication of this policy on www.ect.nl and the HR Portal so it is accessible to all.

Article 1 Definitions

In this policy, the following terms shall have the meanings set out below:

- | | |
|---|---|
| a. Adviser: | a natural or legal person who advises a reporter during the reporting process in a work-related context and whose advice is confidential. |
| b. Advisory Department of the Whistleblowers Authority: | the advisory department of the Whistleblowers Authority as referred to in Article 3a(2) of the Whistleblowers Protection Act (www.huisvoorklokkenuiders.nl). |
| c. Investigations Department of the Whistleblowers Authority: | the investigations department of the Whistleblowers Authority as referred to in Article 3a(3) of the Whistleblowers Protection Act. |
| d. Involved third person: | (i) a third person connected to a reporter who may suffer detriment by the reporter's employer or by a person or organisation to which the reporter is otherwise connected in a work-related context, and
(ii) a legal person owned by the reporter, for which the reporter works, or with which the reporter is otherwise work-relatedly connected. |
| e. Competent authority: | an authority designated by law to receive and handle reports of a suspicion of misconduct. |
| f. Board of Directors: | the individuals appointed as members of the employer's Management Board. |
| g. Internal supervisory body: | the Supervisory Board. |
| h. Reporter: | a natural person who, in the context of their work-related activities, reports or discloses a suspicion of misconduct. |
| i. Report: | a report of a suspicion of misconduct. |
| j. Misconduct: | a. a breach of Union law or a threat thereof, or
b. an act or omission affecting the public interest involving:
1°. a breach or threat of breach of a statutory regulation or internal rules containing a specific obligation established by an employer pursuant to a statutory regulation, or
2°. a danger to public health, to the safety of individuals, to environmental protection, or to the proper functioning of public service or an undertaking as a result of improper conduct or improper omission.

The public interest is in any case affected when the act or omission does not solely concern personal interests and there is evidence of a pattern or structural nature, or the act or omission is serious or extensive. |
| k. Works Council: | the Works Council of Europe Container Terminals B.V. |

l. Investigators:	the person or persons appointed by the employer to conduct the investigation into the misconduct.
m. Follow-up:	action taken by the employer or a competent authority to verify the accuracy of the reporter's allegations and, if necessary and within its powers, conduct further investigation or take measures.
n. Directive:	Directive (EU) 2019/1937 of the European Parliament and of the Council of 23 October 2019 on the protection of persons who report breaches of Union law.
o. Breach of Union law:	an act or omission that: a. is unlawful and relates to Union acts and policy areas falling within the material scope referred to in Article 2 of the Directive; or b. undermines the object or application of the rules in Union acts and policy areas falling within the scope referred to in Article 2 of the Directive.
p. Suspicion of misconduct:	the reporter's suspicion that in the organisation in which they work or have worked, or in another organisation with which they came into contact through their work, misconduct exists, insofar as the suspicion is based on reasonable grounds arising from knowledge acquired in the course of their work for the employer or from knowledge obtained through work for another company or organisation.
q. Suspicion of irregularity:	a suspicion based on reasonable grounds of an imperfection or impropriety of a general, operational or financial nature occurring under the organisation's responsibility, and sufficiently serious that it falls outside normal work processes and exceeds the responsibility of the direct supervisor.
r. External confidential counsellor:	the confidential counsellor appointed by the employer, being Margriet Maris, hetvolstevertrouwen.nl .
s. Work-related context:	future, current or past work-related activities in the public or private sector through which persons, regardless of the nature of those activities, may obtain information about misconduct and may be exposed to detriment if they were to report such information.
t. Employer:	Europe Container Terminals B.V., ECT Delta Terminal B.V. and Euromax Terminal Rotterdam B.V. (ECT).

Article 2 Information, advice and support for the reporter

1. A reporter who suspects misconduct may, in confidence, consult:
 - a. an adviser;
 - b. the external confidential counsellor; and/or
 - c. the advisory department of the Whistleblowers Authority.
2. The reporter's adviser or an involved third party may also consult the advisory department of the Whistleblowers Authority in confidence in the event of suspected misconduct.

Article 3 Internal report

1. An internal report may be made by a person who is or was employed by the employer. An internal report may also be made by an applicant or by a person who is not or was not employed by the employer, but who has come into contact with the employer through their work activities.
2. It is preferred that the reporter makes the report internally. However, under Article 8 of this policy, the reporter may also make a direct report of suspected misconduct to a competent authority or to the investigative department of the Whistleblowers Authority.
3. A reporter who suspects misconduct may submit a report to the following officials:
 - a. the external confidential counsellor;
 - b. a General Manager or a Head of Department (these are ECT employees who report directly to the Board of Directors).
4. If the reporter reasonably suspects that a member (or members) of the Board of Directors is (or are) involved in the suspected misconduct, the reporter may submit the report to the internal supervisory body. In that case, references in this policy to "the Board of Directors" shall be read as referring to "the internal supervisory body."
5. The reporter may make a report:
 - a. in writing;
 - b. verbally through telephone or other voice messaging systems, or, upon their request, within a reasonable period through an in-person meeting at a location.
6. An verbal report is registered by:
 - a. making a recording of the conversation in a durable and retrievable format, subject to the reporter's prior consent; or
 - b. preparing a full and accurate written account of the conversation, which the reporter is given the opportunity to review, correct and approve by signing.
7. If the reporter wishes to make an anonymous report, an anonymous report may be made to the external confidential counsellor. The external confidential counsellor will, as far as possible, make arrangements with the reporter regarding how the reporter wishes to be contacted during the remainder of the reporting procedure.
8. If it becomes clear that an anonymous report cannot be fully investigated because the reporter wishes to remain anonymous, the reporter must choose either to accept this consequence and refrain from further cooperation in the investigation in order to protect their anonymity, or to reveal their identity or identifying information so the investigation can proceed.
9. The external confidential counsellor submits a written report at least once per year to the Board of Directors and the Works Council regarding the number and nature of anonymous reports received.
10. The official referred to in paragraph 3 forwards the report, in consultation with the reporter, to the Board of Directors (for the attention of the Chief Human Resources & Services Officer).
11. The Board of Directors sends the reporter an acknowledgement of receipt within seven days of receiving a report. The acknowledgement includes at least a factual description of the report, the date it was received and a copy of the report.

Article 4 Handling of the internal report

1. The Board of Directors registers a report of suspected misconduct upon receipt in a designated register. If the reported misconduct concerns a breach of Union law, the Board of Directors records this as well.
2. The information in the register is deleted when it is no longer necessary. As long as an investigation is ongoing or afterwards a report has been made to a competent authority, or a complaint or judicial procedure is pending, the data will in any case be retained.
3. The Board of Directors initiates an investigation into the suspected misconduct immediately unless:
 - a. the suspicion is not based on reasonable grounds; or
 - b. it is clear in advance that the report does not concern suspected misconduct.
4. The Board of Directors assigns the investigation to investigators – the investigation committee – who are independent and impartial. This committee may consist of internal employees, external experts or a combination thereof. The Board of Directors informs the reporter in writing that an investigation has been initiated and by whom it will be carried out. This is done immediately after the investigation is initiated.
5. If the Board of Directors decides not to initiate an investigation, it informs the reporter in writing within two weeks of the report and provides reasons for not initiating an investigation.
6. The Board of Directors assesses whether the investigative department of the Whistleblowers Authority or another competent authority must be notified of the report. If the Board notifies such authority, it sends the reporter a copy unless doing so would harm the investigation or enforcement interests.
7. The Board of Directors informs the persons to whom the report relates, unless doing so would harm the investigation or enforcement interests.

Article 5 Conducting the internal investigation

1. The investigators give the reporter the opportunity to be heard. A record of the interview is prepared, which is then submitted to the reporter for approval and signature. The reporter receives the final record.
2. The investigators may also hear other persons. A record of their interview is prepared and submitted to the person heard for approval and signature. This person receives the final record.
3. The investigators may inspect and request all documents within the employer's organisation that they reasonably consider necessary for the investigation.
4. Reporters may provide the investigators with any documents they reasonably consider necessary for the investigation.
5. The investigators prepare a draft investigation report containing their findings and assessment. The report includes at least – insofar as covered by the investigation – an analysis of the misconduct, identification of its (suspected) causes, the extent of its consequences, and recommendations to the Board of Directors where appropriate. The investigators give the reporter the opportunity to submit written comments within four weeks, unless there are serious objections. The reporter is required to maintain confidentiality regarding the draft report.
6. The investigators may amend the report based on the reporter's comments. If the comments do not lead to adjustments, the investigators will inform the reporter of the reasons.
7. The investigators then finalise the investigation report and send a copy to the Board of Directors and the reporter, unless serious objections exist.

Article 6 Position of the Board of Directors

1. If the Board of Directors initiates an investigation, it informs the reporter in writing within eight weeks of receipt of the report of its position regarding the suspected misconduct and the follow-up taken as a result of the report and any internal investigation. If the Board does not fully adopt the conclusions and/or recommendations contained in the investigation report referred to in Article 5, it provides written justification.
2. If it becomes clear that the Board of Directors cannot provide its position within this period, it will inform the reporter in writing no later than eight weeks after receipt of the report. The Board of Directors also provides feedback on the steps taken and explains the procedure that the reporter can expect. The total time for completing the investigation is no more than three months after receipt of the report.
3. After completing the internal investigation, the Board of Directors assesses whether the investigative department of the Whistleblowers Authority or a competent authority must be informed of the report, the investigation report and/or the Board's position. If the Board notifies such authority, it sends the reporter a copy.
4. The Board of Directors informs the persons to whom the report relates in the same manner as the reporter, unless doing so would harm the investigation or enforcement interests.

Article 7 Right to be heard regarding the investigation report and the Board's position

1. The Board of Directors gives the reporter the opportunity to respond to the investigation report and to the Board's position.
2. If the reporter indicates, with supporting reasons, that:
 - a. the suspected misconduct has not been properly or adequately investigated; or
 - b. the investigation report or the Board of Director's position contains material inaccuracies,the Board of Directors responds and, if necessary, initiates a new or supplementary investigation. The same rules apply as for the initial investigation.
3. If the Board of Directors has notified or notifies the investigative department of the Whistleblowers Authority or another competent authority of the investigation report and/or its position, it also forwards the reporter's response as referred to in paragraphs 1 and 2 to that authority. The reporter receives a copy.

Article 8 External report

1. The reporter is not required to make an internal report first. They may also make a direct external report. The reporter may also choose to make an external report if they:
 - a. disagree with the Board's position or consider the report to have been wrongly dismissed or insufficiently investigated; or
 - b. have not received a position within three months after the acknowledgement of receipt.
2. External reports may be made to a competent authority. Competent authorities include:
 - a. the Whistleblowers Authority;
 - b. the Authority for Consumers and Markets (ACM);
 - c. the Financial Markets Authority (AFM);
 - d. the Data Protection Authority (AP);
 - e. De Nederlandsche Bank N.V. (DNB);
 - f. the Health and Youth Care Inspectorate (IGJ);
 - g. the Dutch Healthcare Authority (NZa);
 - h. the Authority for Nuclear Safety and Radiation Protection (ANVS);
 - i. organisations designated by general administrative order or ministerial regulation; and
 - j. administrative bodies or their departments with tasks or powers in one of the areas listed in Article 2(1) of the Directive.The procedures for submitting an external report are listed on the websites of the competent authorities.

3. The reporter may submit an external report:
 - a. in writing;
 - b. orally via telephone or other voice messaging systems; or
 - c. in person through a meeting at a location, within a reasonable time upon their request.
4. An oral report is registered by:
 - a. making a durable and retrievable recording of the conversation, subject to the reporter's prior consent; or
 - b. preparing a full and accurate written account, which the reporter is given the opportunity to check, correct and approve by signing.
5. The reporter may, if necessary, obtain information from the advisory department of the Whistleblowers Authority regarding the submission of an external report and the choice of competent authority.

Article 9 Confidentiality

1. Everyone involved in the reporting or investigation of suspected misconduct is bound by confidentiality. This obligation applies to data known to be confidential or reasonably presumed to be confidential. The obligation does not apply where disclosure is required by law. Confidential information includes at least:
 - a. data concerning the identity of the reporter;
 - b. data concerning the person about whom the report is made or with whom that person is associated;
 - c. data of third parties mentioned in the report;
 - d. all information traceable to the data referred to under (a), (b) or (c); and
 - e. trade secrets within the meaning of Article 1 of the Trade Secrets Protection Act.
2. The Board of Directors ensures that information regarding the report and investigation is stored in such a way that it is accessible only to persons involved in handling the report and investigation, both physically and digitally.
3. The identity of the reporter and any information that directly or indirectly reveals their identity is not disclosed without the reporter's express written consent.
4. If the reporter has not given consent for their identity to be disclosed, all correspondence regarding the report will be sent to the official to whom the report was made or to the reporter's adviser. This person forwards the correspondence directly to the reporter.
5. If disclosure of the reporter's identity is required by law in the context of an investigation by a competent authority or judicial procedure, the reporter will be informed in advance with written reasons, unless doing so would jeopardise the investigation or judicial procedure.
6. The identities of the reporter's adviser and third parties involved are also confidential. They are not disclosed without their express written consent.

Article 10 Protection of the reporter, the reporter's adviser and involved third parties against detriment

1. The employer ensures that the reporter suffers no adverse consequences in their work as a result of making a report.
2. The reporter may not be subjected to detriment during or after the handling of a report, provided they had reasonable grounds to believe that the information reported was accurate at the time of the report.
3. The reporter may also not be subjected to detriment during or after public disclosure of suspected misconduct, provided that:

- a. they had reasonable grounds to believe that the information was accurate at the time of disclosure; and
 - b. they made an internal and external report or made a direct external report under this policy, and had reasonable grounds to believe based on the feedback received that the investigation lacked sufficient progress; or, if no report has yet been made:
 - c. they had reasonable grounds to believe that:
 - i. the misconduct poses an imminent or real danger to the public interest; or
 - ii. there is a risk of detriment when reporting to a competent authority; or
 - iii. it is unlikely that the misconduct will be effectively remedied.
4. Detriment includes any adverse measure against the reporter, such as:
- a. dismissal or suspension;
 - b. a fine within the meaning of Article 7:650 of the Dutch Civil Code;
 - c. demotion;
 - d. withholding promotion;
 - e. a negative performance review;
 - f. a written reprimand;
 - g. transfer to another location;
 - h. discrimination;
 - i. intimidation, harassment or exclusion;
 - j. defamation or slander;
 - k. early termination of a contract for the supply of goods or services; and
 - l. revocation of a permit.
5. Detriment also includes threats of, or attempts at, such adverse measures.
6. If the employer takes an adverse measure against the reporter after a report has been made, it is presumed that the detriment resulted from the report or disclosure. The employer must justify in writing why the measure was necessary and explain why it is unrelated to the report.
7. The employer confronts persons who engage in detrimental conduct toward the reporter and may issue a warning, disciplinary action or sanction in accordance with ECT's sanctions policy.
8. This Article also applies to the reporter's adviser, involved third parties, those to whom a report may be made under Article 3(3) and those responsible for follow-up as referred to in Article 4(4).

Article 11 Preventing detriment and investigation into detriment

1. The official to whom the reporter has made their report discusses with the reporter the potential risks of detriment, how these risks may be mitigated, and what the reporter can do if they believe they are being subjected to detriment.
2. If the reporter believes they are subject to detriment, they may:
 - a. discuss this with the official to whom the report was made. That official and the reporter discuss measures to prevent detriment. The official will prepare a record of this discussion and, once approved by the reporter, send it to the employer; and/or
 - b. request that the employer investigate their treatment; and/or
 - c. seek advice from the advisory department of the Whistleblowers Authority; and/or
 - d. request a treatment investigation ("*bejegeningsonderzoek*") by the investigative department of the Whistleblowers Authority.
3. The advisory department of the Whistleblowers Authority assesses whether legal assistance and/or mediation is necessary and may issue a referral letter for free legal assistance from a lawyer or mediator. No income or assets test applies and no personal contribution is required.

Legal assistance and mediation are free of charge and may be used at any stage of the dispute. The request must be made through the advisory department of the Whistleblowers Authority.

4. This Article also applies to a potential reporter, the reporter's adviser and involved third parties.

Article 12 Reporting and evaluation

1. The employer prepares an annual report on the application of this policy. This report includes at least:
 - a. information on the policy applied in the past year and the policy planned for the coming year regarding the handling of reports of suspected misconduct;
 - b. information on the number of reports, an indication of their nature, the outcomes of investigations and the positions of the Board of Directors;
 - c. general information on any experience with preventing detriment to reporters; and
 - d. information on the number of requests for investigation into detriment relating to a report, an indication of the outcomes of the investigations and the positions of the Board of Directors.
2. The employer submits the report to the Works Council for discussion.

Article 13 Internal report of (suspected) irregularity

For reporting an (suspected) irregularity, the procedure set out in this policy for internal reports applies mutatis mutandis, as described in Articles 3 through 7, Article 9, Article 10 (except paragraph 3), Article 11 paragraphs 1, 2(a) and (b), and 4.

Article 14 False report

If a reporter maliciously, fraudulently, with ulterior motives or for personal gain makes a false report, the employer reserves the right to refuse to initiate an investigation or to discontinue an investigation, and to take appropriate measures against the reporter to recover any costs, losses or damages resulting from the false report. The reporter may also face disciplinary measures.

Article 15 Retention period for personal data

In general, personal data is retained for up to two months after completion of an investigation, unless circumstances (such as judicial proceedings) require longer retention. Personal data is never kept longer than necessary for the implementation of this policy.

Article 16 Withdrawal and entry into force

The Procedure for Handling Reports of Suspected Misconduct or Irregularities is withdrawn. The Whistleblowing Policy enters into force on 4 December 2025.